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Politics - taking a stand

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California legislative Democrats are urging their congressional colleagues to shut down the federal government and block further funding to immigration enforcement agencies after agents shot and killed another civilian in Minnesota over the weekend.

At least 50 Democratic state senators and assemblymembers — more than half the party's caucus — on Monday decried the slaying of Alex Pretti, the Minneapolis resident and Veterans Affairs intensive care nurse who on Saturday was gunned down by federal immigration enforcement agents.

The lawmakers proclaimed their solidarity with Minnesota and other cities and states that have been targeted by federal law enforcement agents. They railed against what they called the Trump administration's militarization of American cities as some wiped away tears.

The previously bipartisan spending package, which would fund the departments of Defense, Labor, Health and Human Services and Homeland Security, awaits a vote in the U.S. Senate, where an increasing number of Democrats have vowed to filibuster it.

But California lawmakers warned that Senate Democrats, many of whom represent battleground states, might cave and give Republicans the votes they need to push the measure to President Donald Trump's desk.

"This message is for Sen. Chuck Schumer," said Assemblymember Liz Ortega, Democrat of Hayward. "Do your job. Stand for something. Don't fold again."

Assembly Speaker Robert Rivas, Democrat of Salinas, called for Schumer to "step aside" if he couldn't keep his caucus in lockstep.

Rivas and his colleagues also had a message for Republican lawmakers.

"We need you to speak out. You cannot watch these videos coming out of Minneapolis, Minn. and think that this is acceptable," Rivas said. "We need your voice, we need your solidarity, and standing up for American values."

In reference to the fact that Pretti was apparently carrying a permitted weapon, Assemblymember Mark Gonzalez of Los Angeles quoted a 2018 tweet from the late Charlie Kirk, which stated that the Second Amendment wasn't for hunting or self protection, but "to ensure that free people can defend themselves if, god forbid, government became tyrannical and turned against its citizens."

"What do you call a masked agent killing people in the street? What do you call children being taken from families?" Gonzalez said.

He noted that the National Rifle Association condemned premature conclusions about the shooting as "dangerous and wrong."

"Even the NRA is calling out the dangerous ignorance of federal officials trying to excuse the killing of Alex Pretti," Gonzalez said. "When even staunch defenders of the Second Amendment recognize the need for accountability, we must listen."

So far, California Republicans have targeted their criticism mainly at Democrats. Republican legislative leadership deferred to other members of their caucus when asked for comment.

Sen. Tony Strickland, Republican of Huntington Beach, said Democratic officials have created risky and unsafe conditions for both the agents and civilian onlookers through so-called “sanctuary” policies that limit local and state law enforcement from working with federal immigration agents. They argue that those policies create risky situations where civilians like Pretti feel they need to monitor and track officers.

“Stop the rhetoric that ICE agents are Gestapo, that they’re secret police, that they’re Nazis,” said Assemblymember James Gallagher of Chico, the former Republican Assembly leader who recently announced his bid for the special election to fulfill the final months of the late Rep. Doug LaMalfa’s congressional term. “This type of rhetoric is helping to contribute to the chaotic environment in places like Minnesota.”

Gallagher called Pretti’s death a “terrible thing” and called for an independent investigation and accountability.

Legislation calls for greater ICE oversight

Some lawmakers are committing to introduce new measures to curtail the power of federal agents.

“Certainly this is a frustrating situation because so much of the power and the authority here is in the hands of the federal government in Washington, D.C., but that doesn’t mean that the answer for us is to do nothing,” said Assemblymember Jesse Gabriel, Democrat of Encino.

Gabriel plans to introduce a bill that would require the California attorney general to conduct an independent investigation into any shooting by federal immigration enforcement agents in the state, an extension of an existing law that already requires such investigations for shootings by

local and state law enforcement. He will also co-author a bill with Assemblymember Juan Carrillo that would ban federal immigration enforcement agencies from using state resources to facilitate their operations, such as staging equipment and personnel on state property.

“We have to use every tool at our disposal, every lawful opportunity that we have to use our power, our authority to think of all of the different ways that we can push back,” Gabriel said.

Also on deck for a vote in the California Senate this week is Senate Bill 747 co-authored by Sen. Aisha Wahab of Hayward and Sen. Scott Wiener, a San Francisco Democrat who is running to replace Speaker Emerita Nancy Pelosi in Congress, that would allow Californians to sue federal agents for civil rights violations. The bill builds upon Wiener’s measure from last year that banned federal immigration enforcement agents from wearing masks, which Gov. Gavin Newsom signed into law.

Wiener argued that the issue should not be partisan.

“This is really about everyone’s rights under any federal administration,” Wiener told CalMatters on Monday. “Local and state law enforcement are already subject to civil rights liability if they violate someone’s rights, and federal agents effectively are not,” he said.

“This is simply seeking to apply the same standards for all law enforcement.”

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